

HOUSE No. 5402

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES

REPORT
of the
SPECIAL JOINT
COMMITTEE
on
INITIATIVE PETITIONS
on the
INITIATIVE PETITION
of
NORMA B. SHULMAN
AND OTHERS
FOR THE PASSAGE OF AN ACT
RELATIVE TO ELECTION
DAY REGISTRATION
(see House, No. 5001)

May 4, 2026.

MAJORITY REPORT.

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-08, House 5001, *Initiative Petition for a Law Relative to Election Day Registration*, on March 31, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5603.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions (“the Committee”) voted to recommend that the General Court **take no action** on Initiative Petition 25-08, House 5001, *Initiative Petition for a Law Relative to Election Day Registration* (“the Petition”).

In reaching this determination, the Committee conducted a comprehensive review of the proposed measure, including a detailed analysis of its language, structure, and intended effect. The Committee evaluated testimony and supporting evidence presented during the public hearing, as well as supportive written submissions from election officials, policy experts, advocacy organizations, and members of the public. In addition, potential legal, administrative, and fiscal implications associated with implementing the proposal at both the state and municipal levels were raised along with the identification of staffing and technology infrastructure needs, that testifiers believed were necessary to implement same day registration.

The Petition proposes to establish a system of election day registration, allowing otherwise eligible voters to register and cast a ballot on the same day, including during early voting periods and on election day itself. The Committee recognizes the importance of promoting civic engagement and ensuring broad and equitable access to the electoral process.

The Committee supports ongoing efforts to expand voter access and participation but finds the petition as written (which the Legislature cannot modify) does not adequately address the operational challenges raised by the testimony it received.

It is important to note that Article 48 of the Amendments to the Massachusetts Constitution, which governs the initiative petition process, requires the Attorney General to provide initial certification of initiative petitions that meet the specific and limited requirements listed in Article 48. In making

a decision on whether to initially certify an initiative petition, the Attorney General does not evaluate a petition's broader constitutionality; her certification decision is limited only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time.

For these reasons, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-08, House 5001, *Initiative Petition for a Law Relative to Election Day Registration*.

Senators.

Cindy F. Friedman
Brendan P. Crighton
Barry R. Finegold

Representatives.

Alice Hanlon Peisch
Kate Hogan
Frank A. Moran
Michael S. Day
David T. Vieira